

Tentative Rulings
July 7, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

14. *C.A.H.P. Credit Union v. Gruidl, et al*, Case No. CIVSB2518609
Plaintiff's Motion for Attorneys' Fees
7/7/26, 8:30 a.m., Dept. S-17

The Court would **GRANT** this unopposed motion.

Here, the Court granted Plaintiff's unopposed Motion for Summary Judgment as to this collections matter March 9, 2026. (See Order, 3/9/26.) Thus, Plaintiff is the prevailing party. (See Code Civ. Proc., § 1032 [defining "prevailing party"].)

"In any action on a contract where the contract specifically provides that attorney's fees and costs, which are incurred to enforce that contract, shall be awarded to the prevailing party" (Code Civ. Proc., § 1717(a).) Here, such a contract provision exists. (See Robie Decl., ¶¶8-11 & Exh. 1 [contract].) Further, Plaintiff has set forth a detailed lodestar analysis supporting the requested fees. (See Rocha Decl., ¶¶3-6 & 11.) The Court finds the billing rates consistent with the regional rates given the experience of the attorneys. Thus, the Court would grant attorneys' fees in the amount of \$7,024.50 (reduced by two hours to reflect that lack of any opposition or necessary reply).

15. *Kaiser Foundation Health Plan, Inc., v. Imperial*, Case No. CIVSB2523812
Appellant's Motion for Summary Judgment
7/7/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **GRANT** the motion and reverse the award of unpaid minimum wages and liquidated damages to Respondent. Here, (1) Appellant cannot be liable for unpaid wages because it was not Respondent's employer; (2) Respondent released any claim for unpaid minimum wages through his membership in two class action settlements; and (3) Respondent failed to comply with the condition precedent of his collective bargaining agreement (CBA) grievance procedures. (UF, Nos. 1-3, 7-11, 13-14, 17, 25-32, 34-42, 45-51, and 53-54, and cited evidence: Labor Commissioner Order, Decision, and Award [Exh. A]; Responses to Requests for Admissions [Exh. D]; Wage Statements [Exhs. E-F]; Myette & Schwermer-Sween Declarations and Exhibits thereto; as well as Final Settlement Approval Orders [Exhs. H & J] and the CBA [Exh. K].

Case Summary

This is an appeal from a Labor Commissioner's Order, Decision, and Award relating to unpaid wages. The underlying case relates to wages relating to pay periods January 1, 2020, through December 31, 2020, and January 1, 2021, through December 31, 2021. The Labor Commissioner

found Appellant liable for \$13,010.44, in unpaid wages and liquidated damages. Appellant Kaiser appealed to this Superior Court and subsequently submitted this at-issue motion for summary judgment. No opposition has been filed.

Summary of the Law

Summary judgment is proper where there is no triable issue as to any material fact and the moving party is entitled to judgment as a matter of law. (Code Civ. Proc., § 437c(c).) The analysis requires three steps: First, the court must identify of the issues framed within the pleading. (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1064-1065.) Second, it must determine whether the moving party has established facts sufficient to negate the claim and justify a judgment in movant's favor. (*Ibid.*) Third, and finally, when a summary judgment motion, as a prima facie matter, justifies a judgment, the court must determine whether the opposition demonstrates the existence of a triable issue of material fact. (*Ibid.*)

Analysis

Not an Employer: Appellant begins its motion by arguing that it cannot be held liable since it was not Respondent's employer. The general rule is that only one who employs another can be liable for failure to pay wages. (*Martinez v. Combs* (2010) 49 Cal.4th 35, 49.)

Here, Respondent admits that he is not and never was an employee of Appellant Kaiser. Rather, he was employed by Southern California Permanente Medical Group (SCPMG). Further, he was employed by SCPMG between January 1, 2020, and December 31, 2021. (Appellant's Separate Statement of Undisputed Facts (UF) Nos. 1-3 & 7; RFAs Nos. 1-4.) Furthermore, Respondent's timecards identify SCPMG as his employer. (UF No. 11 & 17; Exhs. E-F.)

Claim Preclusion: Further, Appellant asserts that Respondent's claims are precluded as he was a member of two wage-and-hour settlement classes. A judgment under a class action settlement will subsequently bar claims based on the allegations pleaded in the underlying class litigation for the settlement class members who were provided notice. (*Shine v. Williams-Sonoma, Inc.* (2018) 23 Cal.App.5th 1070, 1078.)

The two at-issue matters are (1) *Leyva v. So. Cal. Permanente Medical Group* (BC621718), heard in Los Angeles County Superior Court and (2) *Coffey, et al, v. So. Cal. Permanente Medical Group* (37-2020-00029409-CU-OE-CTL), heard in San Diego County Superior Court. In *Leyva* the class wage-and-hour claims covered the period between May 26, 2012, and July 7, 2020. (UF Nos. 25 & 31; Myette Decl., Exh. A.) In *Coffey* the class wage-and-hour claims covered between July 8, 2020, and February 5, 2025. (UF Nos. 34 & 49; Schwermer-Sween Decl., Exh. A.) Respondent was a member to both these classes; he did *not* opt out; and he cashed his settlement checks. (UF Nos. 26-30m 32-33; Myette Decl., Exh. A; RFAs 7-8 [re *Leyva*]; and UF Nos. 35-39, 41-42, Schwermer-Sween Decl., Exh. A; RFAs 5-6.)

Failure to Exhaust: Finally, Appellant asserts that Respondent failed to follow the necessary grievance and arbitration procedures within the salient CBA. A party to a collective bargaining agreement that provides for grievance and arbitration measures to settle disputes within its scope, must “exhaust the internal remedies before resorting to the courts in the absence of facts excusing such exhaustion.” (*Johnson v. Hydraulic Research & Mfg. Co.* (1977) 70 Cal.App.3d 675, 679; *Palmer v. Regents of University of California* (2003) 107 Cal.App.4th 899, 903-904, 904 [“When a private association or public entity establishes an internal grievance mechanism . . . failure to exhaust those internal remedies precludes any subsequent private civil action.”].)

Respondent admits that his employment was governed by a CBA. (RFA 10.) The CBA provides for standby pay. (UF No. 45; Exh. K.) The CBA further defines grievance as “every dispute concerning application or interpretation of this contract and/or any disputes concerning wages, hours or working conditions.” (UF No. 46; Exh. K.) Under the CBA, any grievance is subject to a 4-step procedure with the fourth step of submitting the grievance to arbitrator. (UF Nos. 47-51; Exh. K.) Here, Respondent’s underlying claim was that he was not paid all minimum wages required for his on-call hours. (UF Nos. 8-10 & 13-14; Exh. A.) Yet, he did not submit a grievance personally or through the union before initiating his claim before the Labor Commissioner. (UF Nos. 53-54; RFA 11-12.)
